



M. Release, Waiver of Liability & Assumption of Risk

Purpose: *Subcontractor and its workers assume the risks of the work and release the Company for injuries to Subcontractor's own personnel.*

This Release, Waiver of Liability and Assumption of Risk ("Release") is given by the undersigned Subcontractor, for itself and its owners, officers, employees, agents, and lower-tier subcontractors (collectively, the "Subcontractor Parties"), in favor of **Archangel Contracting Services** and its officers, members, employees, and agents (collectively, "Company").

1. Assumption of Risk. The Subcontractor Parties understand the work involves inherent risks — including work at heights, with tools, equipment, vehicles, electricity, chemicals, and at occupied residential properties — and voluntarily assume all risk of injury, illness, death, or property damage to any Subcontractor Party arising from or relating to the work or their presence at any property.

2. RELEASE AND WAIVER. TO THE FULLEST EXTENT PERMITTED BY LAW, THE SUBCONTRACTOR PARTIES HEREBY RELEASE, WAIVE, AND FOREVER DISCHARGE COMPANY FROM ANY AND ALL CLAIMS, DEMANDS, ACTIONS, AND LIABILITIES FOR BODILY INJURY, ILLNESS, DEATH, OR PROPERTY DAMAGE SUFFERED BY ANY SUBCONTRACTOR PARTY ARISING OUT OF OR RELATING TO THE WORK OR PRESENCE AT ANY PROPERTY, INCLUDING CLAIMS BASED ON THE ORDINARY NEGLIGENCE OF COMPANY, EXCEPT TO THE EXTENT CAUSED BY COMPANY'S GROSS NEGLIGENCE OR WILLFUL MISCONDUCT.

3. Subcontractor's Insurance Is the Exclusive Remedy. Subcontractor maintains workers' compensation or occupational-accident coverage for its workers. That coverage and Subcontractor's own insurance are the sole and exclusive source of recovery for injury, illness, or death of any Subcontractor Party. Company provides no insurance or benefits for the Subcontractor Parties.

4. EMPLOYEE-INJURY INDEMNITY. TO THE FULLEST EXTENT PERMITTED BY LAW, INCLUDING SECTION 151.103 OF THE TEXAS INSURANCE CODE, SUBCONTRACTOR SHALL INDEMNIFY, DEFEND, AND HOLD HARMLESS COMPANY FROM AND AGAINST ALL CLAIMS, DAMAGES, LOSSES, AND EXPENSES (INCLUDING REASONABLE ATTORNEYS' FEES) FOR BODILY INJURY, ILLNESS, OR DEATH OF ANY SUBCONTRACTOR PARTY ARISING FROM THE WORK, REGARDLESS OF ANY ALLEGED CONCURRENT NEGLIGENCE OF COMPANY.

5. Waiver of Subrogation. Subcontractor and its insurers waive all rights of subrogation and recovery against Company for any injury, illness, death, or damage to any Subcontractor Party.

6. Safety Responsibility. Subcontractor is solely responsible for the safety, training, supervision, personal protective equipment, and OSHA compliance of its workers, and provides its own first aid and emergency response. Company has no duty to supervise Subcontractor's means, methods, or jobsite safety.

7. Medical & Emergency Costs. Subcontractor is responsible for all costs of medical treatment for the Subcontractor Parties and authorizes Company to arrange emergency care for an injured worker at Subcontractor's expense.

8. Binding Effect; Survival. This Release binds the Subcontractor Parties and their heirs, representatives, successors, and assigns, and survives completion of the work and termination of the relationship.

THE SUBCONTRACTOR HAS READ THIS RELEASE, UNDERSTANDS IT IS A RELEASE OF LIABILITY AND ASSUMPTION OF RISK, AND SIGNS IT VOLUNTARILY.

Subcontractor

Signature: _____

Printed name: _____ Title: _____

Company: _____ Date: _____